

CHAPTER 11.

An Act to amend the Naval Discipline (Delegation of Powers) Act, 1916, with respect to the Officers to whom powers under that Act may be delegated.

[5th April 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The officers to whom the powers in relation to court-martial may be delegated by the Commander-in-Chief of the Grand Fleet under the Naval Discipline (Delegation of Powers) Act, 1916, shall include all officers not below the rank of flag officer in command of squadrons forming part of that fleet, and accordingly that Act shall have effect as if for the words " Vice-Admirals " and " Vice Admiral " wherever they occur there were substituted the words " flag officers " and " flag officer " respectively.

Extension of class of officers to whom powers may be delegated. 6 & 7 Geo. 5. c. 17.

2. This Act may be cited as the Naval Discipline (Delegation of Powers) Act, 1917, and the Naval Discipline (Delegation of Powers) Act, 1916, and this Act may be cited together as the Naval Discipline (Delegation of Powers) Acts, 1916 and 1917.

Short title.

CHAPTER 12.

An Act to enable the exception from Military Service of Men excepted on the ground of previous rejection, or the previous relinquishment of, or discharge from, Naval or Military Service, or unsuitability for Foreign Service, to be reviewed.

[5th April 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Army Council may, in accordance with and subject to the provisions of this Act, at any time, by written notice require any man who is for the time being excepted from the operation of the Military Service Acts, 1916, as being—

Power to call up certain excepted men for examination. 5 & 6 Geo. 5. c. 104.

(a) a member of the territorial force who is, in the opinion of the Army Council, not suited for foreign service ;
and

6 & 7 Geo. 5. c. 15.

- (b) a man (in this Act referred to as a disabled man) who has left or been discharged from the naval or military service of the Crown in consequence of disablement or ill-health (including an officer who has ceased to hold a commission in consequence of disablement or ill-health); and
- (c) a man who has been previously rejected on any ground, either after offering himself for enlistment or after becoming subject to the Military Service Acts, 1916,

to present himself for examination in such manner and within such time, not being less than fourteen days, as may be specified in the notice :

Provided that no man shall be required to submit himself for re-examination within six months of his previous and last rejection or discharge except where the Army Council otherwise direct in a case in which it appears to the Council that the previous rejection or discharge was obtained by fraud :

Provided also that the powers under this provision shall not extend—

- (a) to any man who is for the time being engaged in agriculture, and whose work is certified by the Board of Agriculture and Fisheries (or, as respects Scotland, the Board of Agriculture for Scotland) to be work of national importance, and who was engaged on such work on the thirty-first day of March nineteen hundred and seventeen ; or
- (b) to any officer or man who has left or been discharged from the naval or military service of the Crown in consequence of disablement if the disablement has been certified under the authority of the Admiralty or the Army Council to be the result of wounds (including injury from poisonous gas) received in battle or in any engagement with the enemy or otherwise from the enemy, or in consequence of neurasthenia or allied functional nerve disease if so certified by a special medical board to be the result of naval or military service in the present war, but any such man shall, notwithstanding anything in any Act or regulation, be entitled to offer himself for re-enlistment if he is willing to do so, and to be re-enlisted.

(2) Any man to whom a notice is so sent shall, as from the date of the notice, be deemed to come within the operation of section one of the Military Service Act, 1916 (Session 2), and not to be excepted therefrom as being unsuited for foreign service, or as being a disabled man, or as having been previously rejected, as the case may be ; and the Military Service Acts,

1916, shall apply accordingly. If a voluntarily attested man who has been rejected but not treated as discharged is called up for further examination, he shall have the same rights of appeal under the Military Service Acts, 1916, as a man on whom a notice requiring him to present himself for examination is served under this Act.

(3) If a man fails to comply with a notice under this section, he shall be liable on summary conviction to a fine not exceeding five pounds or to imprisonment for a term not exceeding three months; but a man shall not be liable to a penalty under this provision if he shows that he did not receive the notice, or if he shows that, owing to the loss of a limb or any total and permanent disablement, he is incapable of military service.

(4) Where a disabled man has had at least one month's service with the colours or where his disablement has been caused or aggravated by naval or military service, no notice shall be given to him under this section till after the expiration of a year from the time when he left or was discharged from the service.

(5) Where a man has been required to present himself for examination in pursuance of this section and is not accepted for service, no further notice shall be given to him under this section until after the expiration of six months from the date of the previous notice :

Provided that a man who is not accepted on the ground that he is permanently and totally disabled for service shall receive a final discharge.

(6) A notice calling up a man to present himself for examination under this section may be served by registered post at the last known address of the person on whom it is to be served.

2. Where a disabled man is accepted for service in pursuance of a notice under this Act, he shall, if when he left the service he was an officer, or if when he was discharged from the service he was a warrant officer or non-commissioned officer, be restored to the military rank which he held before he so left the service or was discharged, unless in any individual case the Army Council otherwise direct. Restoration to military rank.

3. This Act may be cited as the Military Service (Review of Exceptions) Act, 1917 ; and the Military Service Acts, 1916, and this Act shall be read together and may be cited together as the Military Service Acts, 1916 and 1917. Short title.